



Bill Number: S.B. 1366

Gowan Floor Amendment

**Reference to: REGULATORY AFFAIRS AND GOVERNMENT
EFFICIENCY S/E Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that the two Senate members of the Public Property Towing and Impound Practices Study Committee (Study Committee) must not be members of the same political party.
2. Specifies that the two House of Representatives members of the Study Committee must not be members of the same political party.
3. Adds, to the Study Committee, one member that represents a statewide public property towing association that:
 - a) is dedicated to advancing the training, safety and professionalism of tow truck operators;
 - b) operates in an urban county with a population of more than 800,000 persons; and
 - c) who is appointed by the President of the Senate.
4. Specifies that the one member of the Study Committee who represents the public property industry must:
 - a) operate in a county of 800,000 persons or less; and
 - b) be appointed by the Speaker of the House of Representatives, rather than the Senate President.
5. Removes, from the Study Committee, the one member who represents a local public safety agency and who is appointed by the Governor.

GOWAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1366

(Reference to REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Public property towing and impound practices
4 study committee; membership; duties; report;
5 delayed repeal

6 A. The public property towing and impound practices study committee
7 is established consisting of the following members:

8 1. Two members of the senate who are appointed by the president of
9 the senate [and who are not members of the same political party]. The
10 president of the senate shall designate one of these members to serve as
11 cochairperson of the committee.

12 2. Two members of the house of representatives who are appointed by
13 the speaker of the house of representatives [and who are not members of
14 the same political party]. The speaker of the house of representatives
15 shall designate one of these members to serve as cochairperson of the
16 committee.

17 3. One member who represents ~~[the public property towing industry]~~
18 [a statewide public property towing association that is dedicated to
19 advancing the training, safety and professionalism of tow truck operators
20 and that operates in an urban county with a population of more than eight
21 hundred thousand persons] and who is appointed by the president of the
22 senate.

23 ~~[4. One member who represents a local public safety agency and who~~
24 ~~is appointed by the governor.]~~

25 [4. One member who represents the public property towing industry
26 that operates in a rural county with a population of eight hundred
27 thousand persons or less and who is appointed by the speaker of the house
28 of representatives.]

29 5. One member who represents the department of public safety and
30 who is appointed by the governor.

31 B. Committee members are not eligible to receive compensation, but
32 members are eligible for reimbursement of expenses under title 38, chapter
33 4, article 2, Arizona Revised Statutes.

1 C. The committee shall:
2 1. Review current fees, rates, fines and administrative charges for
3 the department of public safety initiated accident, arrest, breakdown,
4 disabled and abandoned vehicles tows.
5 2. Examine the qualifications and operational standards for public
6 property towing companies to be considered qualified for
7 government-authorized towing of vehicles.
8 3. Evaluate minimum insurance requirements and background check
9 standards for towing company owners and operators.
10 4. Review the impact of the laws of this state and rules and
11 department of public safety policies relating to public property towing.
12 D. The committee may:
13 1. Request information and data from state and local agencies
14 regarding towing contracts and impound statistics.
15 2. Hold public hearings to receive testimony from industry experts,
16 law enforcement agencies and the public.
17 E. On or before December 31, 2026, the committee shall submit a
18 report of its findings and recommendations for administrative or
19 legislative action to the governor, the president of the senate and the
20 speaker of the house of representatives and shall provide a copy of this
21 report to the secretary of state.
22 F. This section is repealed from and after September 30, 2027."

23 Enroll and engross to conform
24 Amend title to conform

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C: JR
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